

## 24SMCP00411 24SMCP00411

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-08-27

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Case Number: 24SMCP00411 Hearing Date: August 27, 2026 Dept: M

CASE NAME: Creative Artists Agency v. Range

Media Partners, LLC, et al.

CASE NO.: 24SMCP00411

MOTION: Motions

to Seal

HEARING DATE: 8/27/2026

Legal

Standard

The sealing of trial court records is governed by California Rules of Court, (CRC") rules 2.550 and 2.551. (Mercury Interactive Corp. v. Klein (2007) 158 Cal.App.4th 60, 68.) Pleadings, motions, discovery documents, and other papers may not be filed under seal merely by stipulation of the parties—a prior court order must be obtained. (CRC, Rule 2.551(a); see H.B. Fuller Co. v. Doe (2007) 151 Cal.App.4th 879, 888.)

To seal a record, the following requirements are imposed: (1) the party must file a motion or application for an order sealing the record, which must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing; (2) the party must serve a copy of the motion on all parties who have appeared in the case; and (3) the party requesting that a record be filed under seal must lodge it with the court when the motion or application is made unless the record has previously been lodged. (CRC, Rule 2.551(b).)

The Court must make the following express factual findings in order to seal records: (1) an overriding interest exists that overcomes the right of public access to the record; (2) the overriding interest supports sealing the records; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. (CRC, Rule 2.550(d).) These findings embody constitutional requirements for a request to seal court records, protecting the First Amendment right of public access to civil trials. (NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178, 1217-1218.)

An order sealing the record must specifically state the facts that support the findings and direct the sealing of only those pages and documents or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be placed under seal, and all other portions must be included in the public file. (CRC, rule 2.550(e).)

Once sealed, a record can only be unsealed by order of court. (CRC, Rule 2.551(h)(1).) So long as it remains under seal, all parties must refrain from filing anything not under seal that would disclose the sealed matter. (Id., Rule 2.551(c).) If a party files a new document referring to sealed matter, it must submit an unredacted version of the document under seal and a redacted one for the public record. (Id., Rule 2.551(b)(5).)

## ANALYSIS

Respondents Range Media Partners, LLC and Peter Micelli ("Respondents") move to seal certain documents which have been lodged conditionally under seal. The Court notes that the parties have also filed served six other motions to seal various documents in this action. The Court finds good cause to advance each of the sealing motions to the instant hearing date, and rule on all of them. In these motions, Respondents seek to seal the following documents:

(1) Documents in support of Respondents' opening brief to the OSC, including:

1. Portions of Respondents' Opening

Brief in Response to OSC Regarding Contempt;

2. Portions of

the Declaration of Ilissa Samplin in Support of Respondents' Opening Brief in Response to OSC Regarding Contempt;

3. Exhibits A,

B, G, H, K, N, O, P, R, S, Y, Z, AA, BB, CC, DD, EE, FF, GG, HH, II, JJ, KK,

LL, MM, and NN to the Declaration of Ilissa Samplin in Support of Respondents' Opening Brief in Response to OSC Regarding Contempt;

(2) Documents in support of

Respondents' reply brief to the OSC, including:

1. Respondents' Reply in Support of

Opening Brief in Response to OSC Re Contempt;

2. Supplemental Declaration of

Ilissa Samplin in Support of Respondents' Reply to

Opening Brief in Response to OSC Re

Contempt and Exhibits PP, QQ, RR, SS, WW,

XX, and YY thereto;

(3) Documents in

support of Respondents' Motion for Reconsideration/Clarification, including:

1. Portions of

Respondents' Notice of Motion and Motion for Reconsideration or Clarification of This Court's Order to Show Cause Regarding Contempt and/or Sanctions; Memorandum of Points and Authorities in Support Thereof;

2. Portions of

the Declaration of Ilissa Samplin in Support of Respondents' Notice of Motion and Motion for Reconsideration or Clarification of This Court's Order to Show Cause Regarding Contempt and/or Sanctions;

3. Exhibits E,

F, H–V to the Declaration of Ilissa Samplin in Support of Respondents' Notice of Motion and Motion for Reconsideration or Clarification of This Court's Order to Show Cause Regarding Contempt and/or Sanctions;

(4) Documents in support of Respondents' Reply to the Motion for Reconsideration/Clarification, including:

1. Portions of Respondents' Reply to Motion for Reconsideration or Clarification of This Court's Order to Show Cause Regarding Contempt and/or Sanctions;

2. Portions of the Declaration of Ilissa Samplin in Support of Reply to Motion for Reconsideration or Clarification of This Court's Order to Show Cause Regarding Contempt and/or Sanctions;

3. Exhibits X–Z to the Declaration of Ilissa Samplin in Support of Reply to Motion for Reconsideration or Clarification of This Court's Order to Show Cause Regarding Contempt and/or Sanctions.

Respondents

demonstrate an overriding interest which overcomes the right of public access to the above-mentioned documents. (See *Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1283-1284 [contractual obligation not to disclose may constitute an overriding interest within the meaning of rules].) These documents contain materials already sealed in the related litigation *Creative Artists Agency, LLC, et al. v. Range Media Partners, LLC*, Case No. 24SMCV04697, and information and materials related to the confidential arbitration proceeding. (Nowicki Decls.) Disclosure of these documents on the public record will prejudice the parties' privacy rights. The requests are narrowly tailored to only confidential information, and there is no less restrictive means of protecting this information.

Petitioners Creative Artists

Agency, LLC; Creative Artists Agency Holdings, LLC; CAA Holdings, LLC; and CAA Equity Incentive, Series 2 LLC move to seal the following documents:

(1) Documents Related to Petitioners'

Response To Respondents' Opening Brief And In Support Of Contempt Finding And Sanctions;

(2) CAA's Reply In Support Of

Motion Requesting Order To Show Cause Regarding Contempt And/Or Sanctions, Or

Alternatively, An Order Compelling Depositions For Range's PMQ And Micelli; and

(3) CAA's

Opposition to Respondents' Motion For Reconsideration Or Clarification Of This

Court's Order To Show Cause Regarding Contempt And/Or Sanctions.

Petitioners also demonstrate an

overriding privacy interest in the underlying arbitration proceedings. Petitioners

show that the subject documents contain information that the parties have designated

as confidential. (Kimer Decls.) A substantial probability exists that the

overriding interest will be prejudiced if the redacted portions of the motions

are not sealed. The requested redactions are narrowly tailored and are limited

to language that reveals information pertaining to the underlying confidential

arbitration proceeding. No less restrictive means exist to achieve the

overriding interest.

Accordingly, each of the identified

sealing motions are advanced to the instant hearing date. The motions to seal

are GRANTED as discussed above.